European Commission

Is your software a Medical Device?

Health

Decision steps to assist qualification of **Medical Device Software (MDSW)**

Medical Device Software (MDSW): Software that is intended to be used, alone or in combination, for a purpose as specified in the definition of a "medical device" in the Medical Devices Regulation (MDR) or ***In Vitro*** Diagnostic Medical Devices Regulation (IVDR).

A

Is your software a Medical Device Software?

1. Is the product a 'Software' according to the definition of MDCG 2019-11?

- Yes → **2.**
- No → **NOT COVERED BY MDCG 2019-11**

2. Is the software an 'MDR Annex XVI device', an 'Accessory' for a medical device according to Art. 2(2) of the MDR or IVDR or 'software driving or influencing the use of a (hardware) medical device'?

- Yes → **COVERED BY THE MEDICAL DEVICES REGULATIONS***
- No → **NOT COVERED BY MDCG 2019-11**

3. Is the software performing an action on data different from storage, archival, communication or simple search?

- Yes → **4.**
- No → **NOT COVERED BY THE MEDICAL DEVICES REGULATIONS***

4. Is the action for the benefit of invidual patients?

- Yes → **5.**
- No → **NOT COVERED BY THE MEDICAL DEVICES REGULATIONS***

5. Is the software a Medical Device Software (MDSW) according to the definition of MDCG 2019-11?

- Yes → **COVERED BY THE MEDICAL DEVICES REGULATIONS***
- No → **NOT COVERED BY THE MEDICAL DEVICES REGULATIONS***

Medical devices Regulations* refers to the two applicable regulations:
Regulation (EU) 2017/745 on Medical Devices (MDR) and Regulation (EU) 2017/746 on *In Vitro* Diagnostic Medical Devices (IVDR)

B

Is your MDSW an *In Vitro* Diagnostic Medical Device Software (IVD MDSW) or a Medical Device Software (MD MDSW)

MDSW according to the definition of MDCG 2019-11

1. Does the MDSW provide information within the scope of the IVD definition?

- Yes → **2.**
- No → **COVERED BY REGULATION (EU) 2017/745 (MDR)**

2. Does the MDSW provide information based on data obtained by IVD medical devices only?

- Yes → **COVERED BY REGULATION (EU) 2017/746 (IVDR)**
- No → **3.**

3. Is the intended purpose substantially driven by IVD data sources?

- Yes → **COVERED BY REGULATION (EU) 2017/746 (IVDR)**
- No → **COVERED BY REGULATION (EU) 2017/745 (MDR)**